

M/S Skmr Healthcare v. Director Electrical Safety, U.P.

High Court of Judicature at Allahabad · Division Bench (Court No. 29) · 19 December 2024 · 2024:AHC:198753-DB · WRIT - C No. - 42357 of 2024 · **Writ disposed; clause 6.5 representation to be decided in one month.**

HEADNOTE

A writ for electricity-duty reimbursement and exemption, a check meter, and revision of bills from 22.07.2022 to 23.01.2023 was confined at the hearing to a direction that the Executive Engineer consider a representation dated 24.09.2024 said to be under clause 6.5 of the U.P. Electricity Supply Code, 2005. The licensee said the representation lay outside clause 6.5. No order having been passed, and without examining maintainability or merits, the Court disposed of the petition and directed the Executive Engineer, Purvanchal Vidhut Vitran Nigam Ltd., E.D.D.-1, Allahabad, to consider the representation and pass an appropriate order within one month of production of a certified copy.

FACTUAL SUMMARY

M/S Skmr Healthcare sought reimbursement of electricity duty already charged, a ten-year exemption, a check meter, and revision of bills from 22 July 2022 to 23 January 2023 on the average of the test result without surcharge. At the hearing counsel confined the writ to a representation dated 24 September 2024 under clause 6.5 of the U.P. Electricity Supply Code, 2005. The Executive Engineer, Purvanchal Vidhut Vitran Nigam Ltd., E.D.D.-1, Allahabad, had passed no order on it, and the licensee said it lay outside clause 6.5.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Pending clause 6.5 representation to be decided by the Executive Engineer

HOLDING

Where a representation dated 24.09.2024, said to be under clause 6.5 of the U.P. Electricity Supply Code, 2005, remains undecided, the writ is disposed of by directing the Executive Engineer to consider it and pass an appropriate order within one month of production of a certified copy, without the Court examining the maintainability or merits of that representation. ¶ 3-5

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided

No order had been passed on the petitioner's representation dated 24.09.2024 said to be under clause 6.5, so the writ was disposed of by directing the Executive Engineer to consider it and pass an appropriate order within one month, without the Court examining maintainability or merits. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE REPRESENTATION DATED 24.09.2024 FALLS WITHIN CLAUSE 6.5

The licensee submitted that the prayers in the representation were beyond the purview of clause 6.5. The Court did not examine maintainability. ¶ 4-5

NOT DECIDED — ELECTRICITY-DUTY REIMBURSEMENT AND EXEMPTION, CHECK-METER INSTALLATION, AND REVISION OF BILLS FOR 22.07.2022 TO 23.01.2023

Counsel confined the writ to a direction to consider the representation. The Court directed an appropriate order without examining the merits. ¶ 2-5

